

# Schedules

# 9 Schedules

## 9.1 Dictionary

This DCP adopts all the definitions contained within the *Environmental Planning and Assessment Act 1979*, the *Environmental Planning and Assessment Regulation 2021*, and the *Bayside Local Environmental Plan 2021* (BLEP 2021). In addition to these definitions, the following terms used in this DCP are defined as follows:

| Term | Definition |
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| Accessible housing | means housing that is designed and built to accommodate the needs of occupants with mobility impairment (Australian Standard 1428: Design for Access & Mobility Series). |
| Active frontage | means that the ground floor of a building is used for one or a combination of the following:<br>• entrance to retail<br>• retail shopfront<br>• entrance to residential/commercial above<br>• café or restaurant if accompanied by an entry Gaps in frontage, blank walls, louvre grilles for plant rooms or car parking areas are not considered to be active frontages. |
| Active transport | refers to walking, cycling or using public transport. Active transport is an alternative to car travel and can provide benefits, such as increasing daily physical activity and reducing greenhouse gas emissions. Ancillary benefits can also include an increase in the sense of community and improved mental health. |
| Adaptable housing | housing that is designed and built to accommodate future changes to suit occupants with mobility impairment or life cycle needs (Australian Standard 4299: Adaptable Housing). |
| Adaptive reuse | means the conversion of an existing building from one use(s) to another or from one configuration to another. |
| Amenity | means the 'liveability' or quality of a place which makes it pleasant and agreeable to be in for individuals and the community. Amenity is important in both the public and private domain and includes the enjoyment of sunlight, views, privacy and quiet. |
| ANEF | means the Australian Noise Exposure Forecast within the meaning of AS2021. |
| Articulation zone | means the area of three dimensional modelling at the periphery of the building, including any changes in facade alignment, balconies, bay windows and sun shading devices. |
| Base hours | the standard range of trading hours that a late night trading premises is entitled to if an application is approved. |
| Building articulation | refers to the three dimensional design of a building and its surfaces. Building articulation can enrich the building's street address and character, and should respond to its orientation. Building articulation also includes modelling of the upper level and roof level of a building. |
| Build to Line | means a front setback expressed as a required distance from the street edge of the building envelope. In urban areas the build to line often corresponds to a zero front setback, to establish a consistent streetscape. |
| Building envelope | means the area within which a building can be built, usually represented in plan and section. |
| Built environment | means the structures and places in which we live, work and play, including land uses, transportation systems and design features. |
| Ceiling height | means the horizontal distance between finished floor level and the underside of the ceiling. |

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| Connectivity | is the degree to which networks, such as streets, railways, walking and cycling routes, services and infrastructure, interconnect. A highly-connected place will have many public spaces or routes linked to it. |
| Core | means the vertical circulation (e.g. lift, stairs). |
| Deep soil | areas of soil within a development that are unimpeded by buildings or structures above and below ground. Deep soil zones exclude basement car parks, services, swimming pools, tennis courts and impervious surfaces including car parks, driveways and roof areas |
| Dignified access | means a design or process which enables access to premises, goods and services, which doesn't assume that assistance is required. |
| Extended hours | trading hours that may be approved above base hours on a trial basis. |
| Facade | means the external face of a building. |
| Flexible space | means the space within a building that can be used as either residential or commercial space (or a combination of both) by virtue of its design and dimensions. |
| Freestanding sign | means a sign that is displayed on a structure that is mounted on the ground on one or more supports. |
| Front building line | means the line of the existing or proposed external wall of a building (other than any ancillary development, attached development or detached development) closest to the property boundary adjacent to the primary road, or otherwise the front of the property. |
| Ground | means the existing ground level at the time of the development application. |
| Habitable room | means a room used for normal domestic activities other than a bathroom, toilet, pantry, walk-in wardrobe, corridor lobby, photographic darkroom, clothes drying room, and other spaces of a specialised nature occupied neither frequently nor for extended periods of time. |
| Indigenous plants or animals | means a plant or animal species occurring at a place within its historically known range and forming part of the natural biodiversity of the area. |
| Legibility | means the extent to which people can understand the layout and find their way, including cues from built forms. In short, an environment which is easily understood by people. |
| Lightwell | means a shaft for air or light, enclosed on all sides or which has the potential to be enclosed by future adjoining development, and either open to the sky or glazed. |
| Non-habitable room | means spaces of a specialised nature not occupied frequently or for extended periods, including bathrooms, toilets, pantries, walk-in wardrobes, corridors, lobbies, photographic darkrooms and clothes drying rooms. |
| On-grade | means on ground level (not on a building structure). |
| Outdoor areas | are any areas that are not considered an enclosed place within the meaning described in the Smoke-free Environment Regulation 2007. |
| Parapet | means a horizontal low wall or barrier at the edge of a balcony or roof. It is often taken to refer to the decorative element which establishes the street wall height of heritage buildings. |
| Patron capacity | the maximum number of patrons permitted in a development consent. Outdoor seating is included in patron capacity calculations. |
| Performance, creative, or cultural uses | include:<br>• Live entertainment, being an event, which one or more persons are engaged to perform live or pre-recorded music, or where the performer (or some of the performers) are present in person. |

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| | • Production, exhibition, or projection of an artwork, craft, design, media, image or immersive technology.<br>• Rehearsal, teaching, or discussion of art, craft design, literature, performance, ideas or public affairs. |
| Penthouse | means a separate dwelling located on the roof area of a residential flat building or shoptop housing. |
| Permeability (in an urban design context) | means the degree of physical and visual accessibility; more specifically, maximising connections with surrounding streets and activities and making their role clear to potential users. |
| Public domain | means places or buildings within an area which are available for public use and access, including streets, public spaces, open space and public buildings. |
| Private open space | means an area of land or of a build (such as a balcony or uncovered roof terrace) which is appurtenant to a dwelling and intended for the exclusive use of the occupants of the dwelling and located and designed so as to offer visual privacy to the occupants. Private open space provided at above ground level must be located a minimum of 2m above ground level. |
| Porte cochere | A covered entrance attached to a main building structure and primarily used for the purposes of loading and unloading vehicles. |
| Site frontage | the width of the property measured at the street. |
| Street alignment | means the boundary between land allotments and a street or lane. |
| Street wall buildings | means buildings built to a consistent alignment to define a street edge, generally with zero side setbacks at the street frontage. |
| Temporary sign | means a sign that is erected for a term not exceeding 40 days, whether consecutive or non-consecutive, in any 365 day period. |
| Terrace (outdoor area) | means an unroofed and usually paved area connected to an apartment and accessible from at least one room. May be on-grade or on a structure (podium). |
| Transport system (also referred to as movement network) | is the physical infrastructure of roads, footpaths, bike paths and railway lines that provide the physical connection between places. Travel time, comfort and safety are factors that determine the quality of transport systems. It is also used as a term to describe the level of service provided (e.g. accessibility to public transport, routes, frequencies and connectivity). |
| Walkability | is the measure of the overall walking conditions in an area. A place is walkable when is has characteristics that invite people to walk. |

## 9.2 Notification Procedures

### 9.2.1 Advertising & Notification Requirements for Local Development

This chapter is the subject of an ongoing review by Council and will be updated upon completion of this review. In the interim, Council will refer to current advertising and notification requirements for local development, contained in Part 2 of *Botany Bay Development Control Plan 2013* and Part 8 of *Rockdale Development Control Plan 2011*, as well as the relevant provisions of the Bayside Engagement and Communications Strategy.

### 9.2.2 External Notification

Some development, in addition to requiring the consent from Council, will also require approval, concurrence or referral (for comment) from a public authority, State Government Department or identified agency.

In determining the external notification requirements of a development application consideration is required to be given to the integrated development and designated development provisions outlined in the *Environmental Planning & Assessment Act 1979*.

The table below provides a guide for the external notification requirements for development applications.

**Table 26: External Notification Requirements**

| Public Authority or State Government Dept or Agency | Legislation/Study | Development Application Note: This list is a guide only. |
|---|---|---|
| **Integrated Development** | | |
| Fishing and Aquaculture (within NSW Department of Primary Industries) | Sections 144, 201, 205 and 219 - *Fisheries Management Act 1994* | • Development that involves reclamation, dredging and or any work that may cover or destroy marine vegetation. |
| The Heritage Council | Section 57 - *Heritage Act 1977* | • Development to land or a building that has an interim heritage order or is listed on the State Heritage Register. |
| NSW National Parks and Wildlife Service | Section 90 - *National Parks and Wildlife Act 1974* (NP&W Act) | • Development where there is an Aboriginal Place (under the National Parks and Wildlife Act) over the land, or any Aboriginal objects on the land and the development proposal will damage, deface or destroy the Aboriginal object or Aboriginal place.[2] |
| Office of Environment & Heritage - NSW | Sections 43, 47, 48, 55 and 122 - *Protection of the Environment Operations Act 1997* | • Development that currently has or may require an EPA licence in accordance with Schedule 1 of the Protection of the Environment Operations Act 1997. |
| Transport for NSW – (fmr. Roads and Maritime Services) | Section 138 - *Roads Act 1993* | • Development that will erect a structure or carry out a work in, on or over a public road, or<br>• Development that involves digging or disturbing the surface of a public road, or<br>• Development involving removing or interfering with a structure, work or tree on a public road, or<br>• Development involving connecting to a road (whether public or private) to a classified road. |
| Office of Water (within the Department of Primary Industries) | *Water Management Act 2000* | • Development that may require water to be pumped from a river, lake, watercourse or bore.<br>• Development that involves or is likely to involve works for irrigation, water supply or drainage, changing (or preventing a change) the course of a river, or preventing the land from flooding. |
| Office of Water (within the Department of Primary Industries) | *Water Management Act 2000* | • Within 40 metres of a water course.<br>• Controlled Activity Approval. |
| **Approvals, referrals and comment** | | |
| Department of Planning and Environment<br>The Environment and Heritage Group (NSW Environment Protection Authority) | *SEPP (Resilience and Hazards) 2021* | • Hazardous and Offensive Development – referral or preliminary hazard analysis. |
| Department of Planning and Environment (Manager of Hazards Unit) | *Botany/Randwick Industrial Area Land Use Safety Study – 2001; The Port Botany Land Use Safety Study Overview Report – 1996 and Council's DCP* | • Development affected by the provisions of the Botany/Randwick Industrial Area Land Use Safety Study – 2001; the Port Botany Land Use Safety Study Overview Report – 1996, and Council's |

| Public Authority or State Government Dept or Agency | Legislation/Study | Development Application Note: This list is a guide only. |
|---|---|---|
| | | Development Control Plan (risk provisions (including transport and dangerous goods route). |
| Heritage Council | *Bayside Local Environmental Plan 2021* | • Development on an archaeological site (other than land listed on the State Heritage Register or to, which an interim heritage order applies.) |
| Transport for NSW – (RailCorp) | *Bayside Local Environmental Plan 2021*<br>*SEPP (Transport and Infrastructure) 2021* | • Development within 25m of either side of the centre line of the Airport Line tunnel. Refer to the Airport Line Tunnel Protection Guidelines for details<br>• Other building works or developments carried out on land near or adjoining rail property, land, infrastructure or assets |
| ARTC | *Bayside Local Environmental Plan 2021*<br>*SEPP (Transport and Infrastructure) 2021* | • Major development within 60m of Sydenham Botany Goods Line.<br>• Other building works or developments carried out on land near or adjoining rail property, land, infrastructure or assets. |
| Transport for NSW | *SEPP (Transport and Infrastructure) 2021*<br>*SEPP (Industry and Employment) 2021*<br>*Roads Act 1993*<br>*Bayside Local Environmental Plan 2021*<br>*Bayside DCP 2022* | • All works relating to a public road.<br>• SEPP (Transport and Infrastructure) 2021 - traffic generating developments.<br>• SEPP (Industry and Employment) 2021.<br>• Acquisition and development of land reserved for roads.<br>• Any development fronting a classified road.<br>• Any new development proposals (regardless of scale) which are located along O'Riordan Street or Robey Street (within the area defined within Figure 92 – Mascot West Employment Lands of Chapter 7.7 of the DCP). |
| Sydney Water Corporation | *Sydney Water Act 1994* | • Development that is likely to require a trade waste permit.<br>• Development that is likely to impact on Sydney Water owned infrastructure, including sewer, water or stormwater infrastructure.<br>• Development, which lies over/adjacent to SydneyWater owned sewer, water or stormwater infrastructure.<br>• Development that is likely to add significant volumes of stormwater to Sydney Water owned stormwater systems.<br>• Development adjacent to the Sydney Water owned Botany Wetlands and Alexandra Canal.<br>• Development on the Eastlakes, Bonnie Doon and The Lakes Golf Courses, which are owned by Sydney Water. |
| Sydney Airport Corporation Limited | *Bayside Local Environmental Plan 2021* | • Development that is likely to have an impact on the function/operation of the airport e.g. height restrictions.<br>• (Any intrusion into prescribed airspace would constitute a controlled activity and as such, must be referred to Sydney Airports Corporation Limited (SACL) for an approval process (Airports Act 1996 Section 186)). |
| NSW Maritime Authority (within Roads and Maritime Services) | *Management of Water and Water side Land Regulations – NSW – Maritime Services Act 1935* | • Development that includes buildings located below the mean high water mark. |

| Public Authority or State Government Dept or Agency | Legislation/Study | Development Application Note: This list is a guide only. |
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| NSW Fire & Rescue | | • Major residential, commercial and industrial developments. |
| NSW Police Service | *Protocol for the Review of Development Applications referred to the New South Wales Police Force by Botany Council.* | • Council is required to consider CPTED principles when assessing all applications.<br>• Council has discretion as to which applications will be referred to NSW Police Force for comment of Jointly reviewed by trained police and council for crime risk, depending on the size or nature of proposal and their likely impact on community safety.<br>• The protocol details a schedule of applications to be referred to NSW Police, a Procedure for referral and exchange of information.<br>• The schedule includes:<br>– Multiple units, townhouse, villa developments (20 or more dwellings)<br>– Mixed use developments (with 20 or more dwellings)<br>– New or upgraded commercial/retail development (major work)<br>– New industrial complexes with multiple industrial units (multiple industrial works)<br>– New or upgraded schools (major works)<br>– Railway stations<br>– Large sports and community facilities (including sporting clubs, town halls, local community halls and club houses)<br>– Clubs/hotels (extended trading hours, gaming rooms etc)<br>– Service station/convenience stores<br>– Hospitals<br>– Places of Public Worship<br>– All Council owned buildings (including major alterations & additions to existing building)<br>– Unusual developments (arcades, brothels, amusement centres, upgrade of Department of Communities and Justice properties)<br>– Any other development type that council deems necessary that may have an impact upon community safety |
| Adjoining Councils – Inner West, Randwick City, City of Sydney, Georges River, Sutherland Shire and City of Canterbury Bankstown | | • Major development located within the vicinity of the Council boundary.<br>• Development that is likely to have an impact on the adjoining Council area – e.g. traffic generation.<br><br>Note: Only adjoining Local Government Authorities (Councils) will be notified not individual residents in the LGAs. |
| Botany Historic Trust | | • Development relating to a significant heritage item identified in Bayside Local Environmental Plan 2021. |
| Department of Climate Change, Energy, the Environment and Water | *Commonwealth Environment Protection and Biodiversity Conservation Act 1999* | • Development which have, may have, or likely to have, a significant impact on a matter of national environmental significance which are:<br>– declared World Heritage areas;<br>– declared RAMSAR wetlands;<br>– listed threaten species and ecological communities;<br>– listed migratory species; |

| Public Authority or State Government Dept or Agency | Legislation/Study | Development Application Note: This list is a guide only. |
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| | | – nuclear actions; and<br>– the environment of Commonwealth marine area. |
| NSW Department of Communities and Justice | | • Large scale residential development;<br>• Major transport or infrastructure; and<br>• Significant commercial developments; residential subdivision or redevelopment applications. |
| Port Authority of New South Wales | *Ports and Maritime Administration Act 1995* | • Any development application proposing a new structure within 10 metres either side (horizontally or vertically) of the “line of sight” (as detailed in Appendix 6 of the DCP) are to be referred to Port Authority of New South Wales for review and comment, to ensure that the proposed development does not impact on the Vessel Traffic Service system. |
| NSW Ports | | • Development in the vicinity of the Port and its main transport routes (road and rail);<br>• Large scale residential development;<br>• Major transport or infrastructure; and<br>• Significant commercial developments; residential subdivision or redevelopment applications. |
| Division of Minerals and Energy (within Department of Industry, Science and Resources NSW) | | • Development in the vicinity of pipelines.<br><br>Note: The owner/operator of the pipeline also needs to be notified. |
| Principal of the Local School and General Manager Asset Management, NSW Department of Education. | | • Development in the vicinity of a school.<br>• Development containing 50 or more dwellings. |
| APA Group<br>planningnsw@apa.com.au<br>Freecall 1800 103 452 | | • Development within the zone of influence for the High Pressure Gas Pipeline. |

## 9.3 Landscape Plan Requirements

| Development Type | Documentation to be Submitted | To be prepared by |
|---|---|---|
| **New Residential Dwellings, Secondary Dwellings, Ancillary Buildings, First Floor Additions, Alterations and Additions**<br>**Swimming Pools** | • Landscape Plan; which shall include the following information:<br>– Shall derivate from the site plan. Include ground level proposal with location of windows in the ground level. Must be on scale and include the north point.<br>– landscape area calculation, (including provision of soft and hard surface treatments),<br>– Existing trees to be retained and trees to be removed,<br>– Proposed planting layout with a plant schedule specify species, common name , pot size, expected matured height and width (All developments shall aim to include one canopy tree in the front setback and one in the rear courtyard on scale with the proposed built form),<br>– Screen planting to ensure privacy and amenity<br>– Fences and gates<br>– Cloths drying area,<br>– Location of all stormwater elements. Includes pipes and pits, rainwater tank, any on site detention, infiltration trenches, etc.<br>– Finishes and levels of outdoor areas | • No specific professional is required. Draftsperson, architect or landscaper can prepare this plan.<br>• Refer to compulsory information needed in to be included in landscape plans for these type of developments. |
| **Multi Dwelling Housing & Residential Flat Buildings** | • Landscape Plan<br>• Landscape Documentation DA checklist (available in landscape technical specification) | • AILA Registered Landscape Architect, or eligible to become an AILA Registered Landscape Architect. |
| **Industrial Development** | • Landscape Plan<br>• Landscape Documentation DA checklist (available in landscape technical specification) | • AILA Registered Landscape Architect, or eligible to become an AILA Registered Landscape Architect. |
| **Commercial / Mixed Use Development** | • Landscape Plan<br>• Landscape Documentation DA checklist (available in landscape technical specification) | • AILA Registered Landscape Architect, or eligible to become an AILA Registered Landscape Architect. |
| **Child Care Centres, Community Centres and Related Buildings (e.g. schools, churches)** | • Landscape Plan<br>• Landscape Documentation DA checklist (available in landscape technical specification) | • AILA Registered Landscape Architect, or eligible to become an AILA Registered Landscape Architect. |
| **Car Parks** | • Landscape Plan | • Landscape Architect |
| **Third Party Advertising Signage** | • Landscape Plan<br>• Detailed perspective sketches and/or photo montages | • Landscape Architect |
| **Development adjoining Wetland Zones or Natural Areas** | • Flora & Fauna Assessment of Significance Species Impact Statement<br>• Refer to Part 3M – Natural Resources | • Ecological Consultant – professionally trained, qualified and experienced. |
| **Development adjoining Biodiversity Mapping** | • Biodiversity Management Plan | • Landscape architect, Horticulturalist, Ecologist, or other professional with suitable knowledge. -<br>• (or other suitable professional.) |

### 9.3.1 Land Use Categories

| Land use category | Land uses |
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| Critical Uses and Facilities | • Community facility that may provide an important contribution to the notification or evacuation of the community during flood events but excluding counselling services, community development centres, libraries, museums, galleries, visitor information centres, and the like);<br>• Emergency services facility;<br>• Hospital;<br>• Residential care facility. |
| Sensitive Uses and Facilities | • Telecommunications facility;<br>• Seniors housing;<br>• Child care centre;<br>• Correctional centre;<br>• Detention facility;<br>• Educational establishment;<br>• Function centre;<br>• Health services facility but excluding a hospital;<br>• Hospital;<br>• Hotel and motel accommodation;<br>• Liquid fuel depot;<br>• Place of public worship;<br>• Residential care facility;<br>• Retirement facility;<br>• Public utility undertakings which are essential to evacuation during periods of flood or if affected would unreasonably affect the ability of the community to return to normal activities after flood events;<br>• Electricity generating works;<br>• Respite day care centre;<br>• Shopping centre; and<br>• Theatre. |
| Subdivision | Subdivision of land that involves the creation of new allotments, with potential for further development. |
| Residential | • Camping ground/caravan park site – long-term sites only[1];<br>• Health consulting rooms;<br>• Home business;<br>• Residential accommodation including Attached dwellings, Backpackers accommodation;<br>• Bed and breakfast accommodation;<br>• Boarding houses, Dual occupancies, Dwelling houses, Group homes, Family day care home, or home based care home, Farm stay accommodation;<br>• Group homes, Hostel, Multi dwelling housing, Residential flat buildings, Serviced apartments, Rural workers dwellings, Secondary dwellings, Semi – detached dwellings, Shop top housing; and Utility installations (other than critical utilities). |
| Commercial or industrial | Abattoir; Amusement centre; Amusement park; Boat building and repair facilities; Bulky goods salesroom or showroom; Business premises; Commercial premises; |

[1] As defined by the Local Government (Caravan Park and Camping Grounds) Transitional Regulation 1993

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| | Community Facility Depots; Freight transport facilities; Heavy industry storage establishments; Heliports; Highway service centre; Hotel; Industries; Industrial retail outlet; Industrial training facility; Junk yard; Medical Centre; Mortuaries; Motel; Motor showroom; Entertainment facilities; Passenger transport facilities; Place of public worship; Plant hire; Recreation facility( indoor, major or outdoor); Registered club; Restaurant; Restricted premises; Roadside stall; Rural industry; Sawmill; Service station; Sex services premises; Shop; Storage premises; Transport depot; Truck depots; Vehicle body repair workshop; Vehicle repair station; Veterinary hospital; and Warehouse or Distribution centre; Waste or resource management facilities; Wholesale supplies |
| Recreation or Rural Uses | • Air transport facilities;<br>• Agriculture;<br>• Animal boarding or training establishment;<br>• Extractive industry;<br>• Farm building;<br>• Forestry;<br>• Helicopter landing site;<br>• Mine; Open cut mining;<br>• Plant nursery;<br>• Recreation areas and minor ancillary structures (e.g. toilet blocks or kiosks);<br>• Stock and sales yard; and<br>• Turf farming. |
| Concessional Development | In the case of residential development:<br>• An addition or alteration to an existing dwelling of not more than 10% or 20sqm (whichever is the lesser) of the habitable floor area which existed at the date of commencement of this Plan;<br>• The construction of an outbuilding with a maximum floor area of 20sqm; or<br>• Rebuilt dwellings which substantially reduce the extent of flood affectation to the existing building.<br><br>In the case of other development:<br>• An addition to existing buildings of not more than additional 10% or 50sqm of the floor area which existed at the date of commencement of this DCP (whichever is the lesser);<br>• Rebuilding of a development which substantially reduces the extent of flood effects to the existing development;<br>• A change of use which does not increase flood risk having regard to property damage and personal safety; or<br>• Subdivision that does not involve the creation of new allotments with potential for further development. |

## 9.4 Late Night Trading Plan of Management Requirements

A Plan of Management should be in the form of a separate attachment with an application and should be accompanied by a signed declaration from the licensee/manager that they have read and understood the Plan of Management.

### 9.4.1 High Impact Premise

At minimum, a Plan of Management for a High Impact Premise should include:

**a) Site and Locality Details**

i. A description of the primary use of the premises as well as any secondary/ancillary uses (e.g. retail liquor sales, place of public entertainment, outside trading areas, gaming areas etc). This may be in the form of a floor and/or site plan that indicates the use of all areas within the building or site;

ii. Identification of any 'active areas' adjacent to the boundaries of the site used in association with the use of premises (e.g. outdoor seating, footway dining, queuing areas, parking etc);

iii. A floor plan that indicates the proximity of external doors, windows and other openings to residential and other sensitive land uses;

iv. Details of the maximum capacity of the premises and the maximum number of patrons that will be standing and/or sitting at any one time. If applicable, details of the capacity of the space to host performance, creative or cultural uses including the location and dimensions the space, stage audience (standing or seating area);

v. The location of waste storage areas;

vi. Location of air conditioning, exhaust fan systems and security alarms;

vii. A site context plan that provides empirical details of on-site and off-site car parking within 100 metres radius of the site, including a description of the availability of public transport in the locality during the proposed trading hours. This should also include routes to taxi ranks or possible taxi pick-up and drop-off areas;

viii. Identification of the most commonly used pedestrian routes to and from the premises, including any "safety corridors";

ix. A summary other late night trading premises that operate beyond midnight within a 200 metre radius of the premises, indicating the nature of their use, their trading hours and distance from the premises.

**b) Operational Details**

i. An overview of the organisation, providing details about the company/licensee/proprietor that includes information regarding:

- the number and type of staff (including security);
- other similar premises within the company's portfolio (if relevant);
- any Liquor Licenses for the premises;
- a description of any actions that the proprietor/licensee has taken to cooperate with NSW Police, the local community and incorporated resident groups regarding the management of the premises;
- existing or planned membership of a local liquor Accord within the Bayside LGA.

ii. Details of any complaints associated with the operation of the premises must be recorded in a Complaints Register which includes (at minimum):

- Complaint date and time;
- Name, contact and address details of person(s) making the complaint;
- Nature of complaint;
- Name of staff on duty; and

- Action taken by premises to resolve the complaint.

iii. For uses that include performance, creative and/or cultural programming, additional detail that should be provided include:

- A description of the music, visual, performance, creative and cultural events that may be staged at the premises;
- Description of the equipment required to present the performance, creative or cultural use;
- Arrangements for booking and promoting performance, creative and cultural uses;
- Procedures for notifying neighbours about the nights when operating hours are extended to provide for performance, creative and cultural uses (such as major events).

**c) Hours of Operation**

i. For existing premises seeking a renewal or extension of trading hours, a schedule of the current trading hours showing the range for each day.

ii. A schedule of the proposed operating hours for each day of the week for all areas of the premises (e.g. courtyards, rooftop, balcony, footway, gaming room etc.) showing the range of hours proposed for each day in the format above; and

iii. If applicable, a schedule of proposed entertainment hours for each day of the week in the format above.

**d) Noise mitigation and management**

i. The identification of all likely noise and vibration sources associated with the operation of the premises, such as:

- Live entertainment and amplified sound;
- external (outside) areas such as courtyards, rooftops, balconies, designated smoking areas, etc;
- patrons leaving and entering the premises;
- the operation of mechanical plant and equipment;
- waste disposal, including the sorting and collection of bottles etc;
- in stand-alone gyms in buildings with residential accommodation, background music, air conditioning and the use of exercise machines and free weights.

ii. Details of all on-site and off-site noise and vibration attenuation measures related to the use and operation of the premises.

iii. A statement outlining the premises' compliance with all relevant noise and vibration standards, guidelines and legislation (e.g. Australian Standards, Protection of the Environment (Operations Act) 1997, EPA Industrial Noise Guidelines, etc.);

iv. Details of how management will address complaints relating to noise, and any noise control strategies that will be implemented to minimise the potential for complaints (e.g. Liaison with neighbours and local police, maintaining a complaint register etc);

v. Details of any measures that will be taken to minimise noise from outdoor areas such as rooftops, courtyards, balconies or designated smoking areas etc; and

vi. Details of any noise limiting devices to be installed.

**e) Safety and security**

i. Measures that will be taken by security personnel to ensure that the behaviour of staff and patrons when entering and leaving the premises will minimise disturbance to the neighbourhood;

ii. Any provisions that will be made to increase security in times where higher than average patronage is expected (e.g. during public entertainment, peak periods on weekends, New Years Eve, following large sporting events in the locality, during special events and functions etc.);

iii. Details of emergency and evacuation procedures in accordance with the relevant Australian Standard and provide details of staff training in those procedures.

iv. Liaison that will be undertaken with other licensees or operators of late trading premises in the locality/area to improve security at night;

v. Details of signage that is to be erected providing advice to patrons to maintain quiet and order when leaving and entering the premises;

vi. Details of measures that will be implemented to ensure that neighbourhood amenity and safety is protected. At a minimum this should include:

- Emergency procedures;
- Crowd control;
- Search procedures;
- Maintenance of an incident register;
- Monitoring of patron behaviour;
- Monitoring of numbers of patrons within the premises;
- Recording of complaints and reporting of incidents to Police;
- Membership of the proprietor/licensee to a local Liquor Accord and a demonstrated commitment to the strategies and principles;
- Dress codes;
- Staff security training;
- Distinctive security attire;
- Availability of cloak rooms;
- Internal and external security patrols;
- The location, design and type of footpath and external lighting that will be installed;
- Measures to prevent glass drinking receptacles being carried from the premises by patrons;
- Measures to ensure safe capacities (e.g. electronic counting of patrons, occupancy limits, signage); and
- Actions to be taken during “wind down” periods prior to closing time;

vii. If queuing outside the premises is to occur, a description of any measures that will be taken to ensure that queuing is controlled in a manner that will not adversely impact the amenity of the neighbourhood and that the footpath will not be unreasonably impeded. This description may address such matters as:

- the use of temporary ropes and bollards;
- maximum queue numbers;
- actions taken to minimise loitering;
- actions ensuring the fast and efficient movement of a queue;

viii. If applicable, methods employed to implement harm minimisation and the responsible service of alcohol (RSA) requirements of the Office of Liquor gaming and Racing such as:

- employee training and awareness regarding RSA and harm minimisation;
- approaches that will be used to manage intoxicated and/or disorderly persons;
- promotion of non-alcoholic beverages;
- display of the premises’ house policy;
- assisting patrons in accessing safe transportation from the premises (e.g. arranging taxis, public transport timetable information)
- encouraging responsible drinking;
- actions taken to discourage drug use and to manage drug related incidents.

**f) Well Managed Late Night Premises**

i. Details of all measures that will be taken to ensure that amenity impacts that may result from the operation of the premises are minimised. This should identify (where relevant) any measures taken to ensure that the operation of the premises will not materially affect the amenity of the neighbourhood

by reason of noise, vibration, smell, fumes, vapour, steam, soot, ash, dust, waste water, waste products, grit, oil or otherwise;

ii. A waste management plan that outlines the procedures for minimising and managing waste that is generated by the premises. This should address such matters as disposal of bottles, how and when waste will be removed, details of waste management facilities, waste collection and storage areas etc.

iii. Details of methods and provisions that will increase patron awareness of responsible disposal of cigarette butts.

iv. If the premises has gaming machines, details of where gaming areas will be located in order to not be viewable from the street (e.g. away from the street frontage, not at ground level if multiple floors, appropriate screening); and how these areas will be patrolled;

v. A statement that addresses how the premises/use will impact/ contribute on the mix of uses in the area/locality during both day and night trading hours;

vi. Details of methods that will increase patron awareness of public transport availability (e.g. signage, availability of timetables) as well as a description of any other measures that will assist patrons in using public transport (eg. provision of a shuttle service, taxi assistance etc.).

vii. Any other measures that will be undertaken to ensure that amenity impacts that may arise from the operation of the premises are addressed.

### 9.4.2 Low Impact Premise

At minimum, a Plan of Management for a Low Impact Premise should include:

**a) Site and Locality Details**

i. A description of the primary use of the premises as well as any secondary/ancillary uses (e.g. retail liquor sales, place of public entertainment, outside trading areas, gaming areas etc). This may be in the form of a floor and/or site plan that indicates the use of all areas within the building or site;

ii. Identification of any ‘active areas’ adjacent to the boundaries of the site used in association with the use of premises (e.g. outdoor seating, footway dining, queuing areas, parking etc);

iii. A floor plan that indicates the proximity of external doors, windows and other openings to residential and other sensitive land uses;

iv. Details of the maximum capacity of the premises and the maximum number of patrons that will be standing and/or sitting at any one time. If applicable, details of the capacity of the space to host performance, creative or cultural uses including the location and dimensions the space, stage audience (standing or seating area);

v. The location of waste storage areas;

vi. Location of air conditioning, exhaust fan systems and security alarms;

vii. A site context plan that provides a description of the availability of public transport in the locality during the proposed trading hours, location of taxi ranks or possible taxi pick-up and drop-off areas and identification of the most commonly used pedestrian routes to and from the premises, including any “safety corridors”;

viii. A summary other late night trading premises that operate beyond midnight within a 200 metre radius of the premises, indicating the nature of their use, their trading hours and distance from the premises;

ix. If applicable, details of the capacity of the space to host performance, creative or cultural uses including the location and dimensions the space, stage audience (standing or seating area).

**b) Operational Details**

i. An overview of the organisation, providing details about the company/licensee/proprietor that includes information regarding:

- the number and type of staff (including security);
- other similar premises within the company's portfolio (if relevant);
- any Liquor Licenses for the premises and if so, existing, or planned membership of a local liquor Accord within the Bayside LGA.

ii. Details of any complaints associated with the operation of the premises must be recorded in a Complaints Register which includes (at minimum):

- Complaint date and time;
- Name, contact and address details of person(s) making the complaint;
- Nature of complaint;
- Name of staff on duty; and
- Action taken by premises to resolve the complaint.

iii. For uses that include performance, creative and/or cultural programming, additional detail that should be provided include:

- A description of the music, visual, performance, creative and cultural events that may be staged at the premises;
- Description of the equipment required to present the performance, creative or cultural use;
- Arrangements for booking and promoting performance, creative and cultural uses;
- Procedures for notifying neighbours about the nights when operating hours are extended to provide for performance, creative and cultural uses (such as major events).

**c) Hours of Operation**

i. A schedule of the proposed operating hours for each day of the week including:

- All areas of the premises (e.g. courtyards, rooftop, balcony, footway, gaming room etc.).
- If the nature of an area changes (for example, a dining area becomes a dance floor after the kitchen closes), then this should be noted and operational hours for the different uses detailed.
- For existing premises seeking renewal or extension of trading hours, a schedule of current daily hours for all areas of the premises.
- If applicable, a schedule of proposed entertainment hours for each day of the week.

**d) Noise mitigation and management**

i. The identification of all likely noise and vibration sources associated with the operation of the premises, such as:

- Live entertainment and amplified sound;
- external (outside) areas such as courtyards, rooftops, balconies, designated smoking areas, etc;
- patrons leaving and entering the premises;
- the operation of mechanical plant and equipment;
- waste disposal, including the sorting and collection of bottles etc
- in stand-alone gyms in buildings with residential accommodation, background music, air conditioning and the use of exercise machines and free weights.

ii. Details of all on-site and off-site noise and vibration attenuation measures related to the use and operation of the premises.

iii. A statement outlining the premises' compliance with all relevant noise and vibration standards, guidelines and legislation (e.g. Australian Standards, Protection of the Environment (Operations Act) 1997, EPA Industrial Noise Guidelines, etc.);

iv. Details of how management will address complaints relating to noise, and any noise control strategies that will be implemented to minimise the potential for complaints (e.g. Liaison with neighbours and local police, maintaining a complaint register etc);

v. Details of any measures that will be taken to minimise noise from outdoor areas such as rooftops, courtyards, balconies or designated smoking areas etc; and

vi. Details of any noise limiting devices to be installed.

**e) Safety and security**

i. A description of any arrangements that will be made for the provision of security staff. This is to include (but is not limited to) the following:
   - the number, hours and physical extent of security personnel that will be patrolling inside and outside the premises.
   - Details of CCTV surveillance camera installation that identifies both indoor and outdoor areas monitored by cameras, and camera technical specifications (e.g. recording capacity, frames per second etc.)

ii. Measures that will be taken by security personnel to ensure that the behaviour of staff and patrons when entering or leaving the premises will minimise disturbance to the neighbourhood, such as details of signage that is to be erected providing advice to patrons to maintain quiet and order when leaving and entering the premises.

iii. Liaison that will be undertaken with other licensees or operators of late trading premises and/or the Local Liquor Accord in the locality/area to improve security at night.

iv. Actions to be taken during 'wind down' periods prior to closing time.

v. If queuing outside the premises is to occur, a description of any measures that will be taken to ensure that queuing is controlled in a manner that will ensure that queuing is controlled in a manner that will neighbourhood and that the footpath will not be unreasonably impeded.

vi. If premise has a liquor license or applying for a new liquor licences, methods employed to implement harm minimisation and the responsible service of alcohol (RSA) requirements must be detailed.

vii. Details of emergency and evacuation procedures in accordance with the relevant Australian Standard and provide details of staff training in those procedures.

**f) General amenity and management**

i. Details of all measures that will be taken to ensure that amenity impacts that may result from the operation of the premises are minimised.

ii. A statement that addresses how the premises/use will impact/ contribute on the mix of uses in the area/locality during both day and night trading hours.

iii. A waste management plan that outlines the procedures for minimising and managing waste that is generated by the premises. This should address such matters as disposal of bottles, how and when waste will be removed, details of waste management facilities, waste collection and storage areas etc.

iv. Any other measures that will be undertaken to ensure that amenity impacts that may arise from the operation of the premises are addressed.

## 9.5 Flood Prone Land Requirements

### 9.5.1 Land Use Categories

| Critical Uses and Facilities | Sensitive Uses and Facilities | Subdivision |
|---|---|---|
| • Community facility that may provide an important contribution to the notification or evacuation of the community during flood events but excluding counselling services, community development centres, libraries, museums, galleries, visitor information centres, and the like;<br>• Emergency services facility;<br>• Hospital;<br>• Residential care facility;<br>• NSW State Emergency Service headquarters. | • Communication facility;<br>• Seniors housing but excluding a residential care facility;<br>• Child care centre;<br>• Correctional centre;<br>• Educational establishment;<br>• Liquid fuel depot; and<br>• Public utility undertakings which are essential to evacuation during periods of flood or if affected would unreasonably affect the ability of the community to return to normal activities after flood events;<br>• Electricity generating works;<br>• Respite day care centre. | Subdivision of land that involves the creation of new allotments, with potential for further development or consolidation of two or more lots. |

| Residential | Commercial or Industrial | Recreation or Rural Uses |
|---|---|---|
| • Residential accommodation including Attached dwellings, Backpackers accommodation;<br>• Bed and breakfast accommodation;<br>• Boarding houses, Dual occupancies, Dwelling houses, Group homes, Family day care home, or home based care home, Farm stay accommodation;<br>• Group homes, Hostel, Multi dwelling housing, Residential flat buildings, Serviced apartments, Rural workers dwellings, Secondary dwellings, Semi – detached dwellings, Shop top housing;<br>• Utility installations (other than critical utilities) | • Abattoir, Amusement centre and Amusement park;<br>• Boat building and repair facilities; Bulky goods salesroom or showroom; Business premises;<br>• Commercial premises; Community Facility Depots; Freight transport facilities;<br>• Entertainment facilities;<br>• Heavy industry storage establishments; Heliports; Highway service centre; Hotel;<br>• Industries; Industrial retail outlet; Industrial training facility;<br>• Junk yard;<br>• Medical Centre; Mortuaries; Motel;<br>• Motor showroom; | • Air transport facilities; Agriculture;<br>• Animal boarding or training establishment;<br>• Extractive industry;<br>• Farm building;<br>• Forestry;<br>• Helicopter landing site;<br>• Mine; Open cut mining;<br>• Plant nursery;<br>• Recreation areas and minor ancillary structures (e.g. toilet blocks or kiosks);<br>• Stock and sales yard;<br>• Turf farming. |

| | | |
|---|---|---|
| • Camping ground/caravan park site – long-term sites only(1);<br>• Health consulting rooms;<br>• Home business. | • Passenger transport facilities; Place of public worship; Plant hire; Recreation facility( indoor, major or outdoor);<br>• Registered club; Restaurant; Restricted premises; Roadside stall; Rural industry;<br>• Sawmill; Service station; Sex services premises; Shop; Storage premises;<br>• Transport depot; Truck depots;<br>• Vehicle body repair workshop; Vehicle repair station; Veterinary hospital; and Warehouse or Distribution centre;<br>• Waste or resource management facilities. | |

(1) As defined by the Local Government (Caravan Park and Camping Grounds) Transitional Regulation 1993

### 9.5.2 Flood Hazard Category

A Flood Hazard Map (for 1% AEP Flood Event) has been prepared for flood prone land based on the flood behaviour derived by flood modelling prepared by Council for each catchment.

The Flood Hazard Map is available at:
https://maps.bayside.nsw.gov.au/Intramaps98/?module=Flood

These hazard categories have been grouped into high and low hazards as follows.

- **High Flood Hazard -** This is defined as the area of land affected by the 1% AEP flood that is subject to hazard category H3 to H6.

  An area identified as high flood hazard is likely to have high flood damages and high risk to life or evacuation difficulties. In this area, there would be a significant risk of flood damage without strict compliance with flood-related development controls.
- **Low Flood Hazard -** This has been defined as the area of land affected by the 1% AEP flood that is categorised as having H1 and H2 hazard category. In this area, the risk to life and flood damage to the building is low, however it is unsafe for small vehicles.

The combined flood hazard curves presented in Figure 172 set hazard thresholds that relate to the vulnerability of the community when interacting with floodwaters. The combined curves are divided into hazard classifications that relate to specific vulnerability thresholds as described in Table 27.

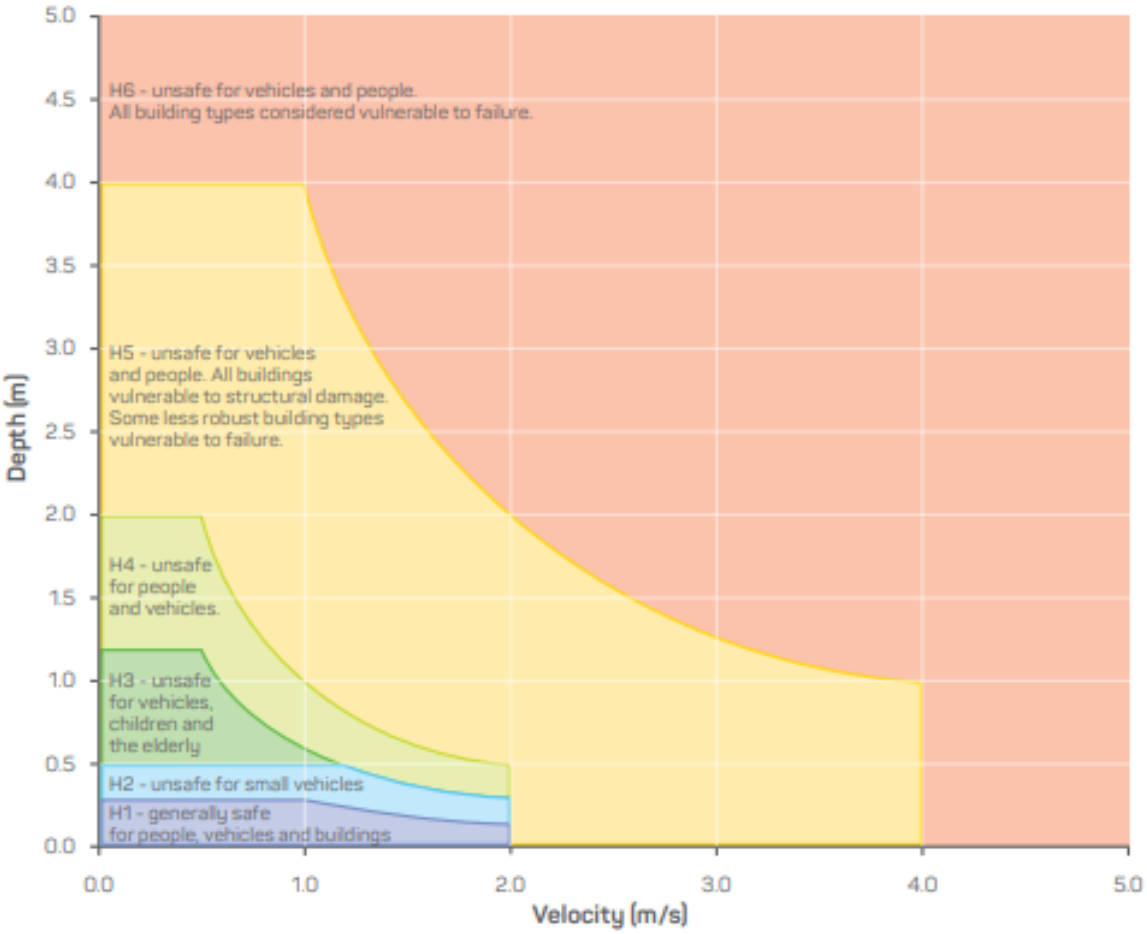



**Figure 172: General Flood Hazard Vulnerability Curves (source: Australian Disaster Resilience Guideline).**

### Table 27: Combined Hazard Curves - Vulnerability Thresholds

| Hazard vulnerability classification | Description |
|---|---|
| H1 | Generally safe for vehicles, people and buildings |
| H2 | Unsafe for small vehicles |
| H3 | Unsafe for vehicles, children and the elderly |
| H4 | Unsafe for vehicles and people |
| H5 | Unsafe for vehicles and people. All buildings vulnerable to structural damage. Some less robust buildings subject to failure |
| H6 | Unsafe for vehicles and people. All building types considered vulnerable to failure |

### 9.5.3 Flood Compatible Materials & Building Components

| Building Component | Flood Compatible Material |
|---|---|
| **Flooring and Sub-floor Structure** | A. concrete slab-on-ground monolith construction<br>B. suspension reinforced concrete slab. |
| **Wall Structure** | A. solid brickwork, blockwork, reinforced, concrete or mass concrete |
| **Roofing Structure (for Situations Where the Relevant Flood Level is Above the Ceiling)** | A. reinforced concrete construction<br>B. galvanised metal construction |
| **Doors** | A. solid panel with waterproof adhesives<br>B. flush door with marine ply filled with closed cell foam<br>C. painted metal construction<br>D. aluminium or galvanised steel frame |
| **Wall and Ceiling Linings** | A. fibro-cement board<br>B. brick, face or glazed<br>C. clay tile glazed in waterproof mortar<br>D. concrete<br>E. concrete block<br>F. steel with waterproof applications<br>G. stone, natural solid or veneer, waterproof grout<br>H. glass blocks<br>I. glass<br>J. plastic sheeting or wall with waterproof adhesive |
| **Insulation Windows** | A. foam (closed cell types)<br>B. aluminium frame with stainless steel rollers or similar corrosion and water-resistant material. |
| **Nails, Bolts, Hinges and Fittings** | A. brass, nylon or stainless steel<br>B. removable pin hinges<br>C. hot dipped galvanised steel wire, nails or similar. |

### 9.5.4 Flood Assessment Reporting

Where a new development (building or earthworks) may impact on the flood behaviour (e.g. filling within the flood affected area or obstruction to the overland flow path) a qualified civil engineer is to be engaged to assess the flood impacts for the existing and proposed development and provide reasoning why the works will have less than or equal to 10mm on surrounding properties in the 1% AEP event and 50mm in

a PMF Flood event. Existing flood hazard shall be not be increased for any development for all flood events up to the PMF.

Council flood models can be made available to a nominated engineer, subject to entering a Model and Data Licence Agreement and payment of the required fee as listed in Council's fees and charges: https://www.bayside.nsw.gov.au/sites/default/files/2021-12/Model%20and%20Data%20Licence%20Agreement.pdf

The flood impact assessment shall include:

1. Flood modelling of the 1% AEP and PMF events. Two-dimensional (2D) flood modelling software (such as TUFLOW) shall be used for the flood impact assessment.
2. Flood assessment reporting shall include but not limited to the following:

    - Qualifications and experience of the qualified civil engineer
    - Model source, set up and parameters, changes in model, assumptions, rainfall data, version of the software used
    - Survey plan
    - Plans of the proposed development
    - Maps showing flood extent, flood contour, flood depth, flood hazard (H1 to H6) and velocity of pre-development and post-development for the 1% AEP and PMF flood events
    - Development (earthworks or building) impact map showing the change between pre and post development flood levels
    - Flood modelling shall include following assumptions
        - blockage of stormwater network:
            - Stormwater pipes equal to or less than 450mm diameter shall be assumed as 100% blocked and pipes above 450mm shall be modelled as 50% blocked.
            - Inlet pits shall be modelled as 50% blocked.
            - Open channel shall be modelled as per Australian Rainfall and Runoff guidelines.
        - Climate change:
            - Climate change impact shall be modelled to manage the risk of future climate change on the development proposal for the life of the buildings/structures and to determine the post development flood impact elsewhere in the floodplain. Provide reasoning as to why the works will have no impact on flood levels considering future climate change (less than or equal to 10mm on surrounding properties in the 1% AEP event).
        - The following scenarios shall be modelled:
            - Scenario 1: Impacts of sea level rise in Year 2050 and 2100.
            - Scenario 2: Impacts of sea level rise combined with increased rainfall intensity in Year 2050 and 2100.

### 9.5.5 Flood Maps and Definitions

Council's online flood maps – refer to online maps available for Bayside LGA:
https://maps.bayside.nsw.gov.au/Intramaps98/?module=Flood

Council's website also contains a flood management page with details of the catchments and flood studies. Refer to the online maps available for Bayside LGA.

The NSW State Emergency Service (SES) Flood Data Portal contains links to Council flood studies and flood models. Refer to the SES Flood Data Portal website: https://flooddata.ses.nsw.gov.au/

**Definitions:**

**Defined flood event** The flood event selected as a general standard for the management of flooding to development. Aims to reduce the frequency of flooding but does not remove all flood risk; for example in selecting a 1% AEP flood as a DFE you are accepting that there is a 1 in 100 chance that a larger event will occur in any year. This risk is being built into the decision.

**Habitable Floor Area**

- in a residential situation: a living or working area, such as a lounge room, dining room, rumpus room, kitchen, bedroom or workroom;
- in an industrial or commercial situation: an area used for offices or to store valuable possessions susceptible to flood damage in the event of a flood.

**Hazard** is a source of potential harm or a situation with a potential to cause loss. In relation to this plan, the hazard is flooding which has the potential to cause harm or loss to the community.

**Freeboard** is a factor of safety expressed as the height above the design flood level. Freeboard provides a factor of safety to compensate for uncertainties in the estimation of flood levels across the floodplain, such as wave action, localised hydraulic behaviour and impacts that are specific event related, such as levee and embankment settlement, and other effects such as "greenhouse" and climate change.

**Floodway area:** Land that is a pathway taken by major discharges of floodwaters, the partial obstruction of which would cause a significant redistribution of floodwaters, or a significant increase in flood levels. Floodways are often aligned with natural channels, are usually characterised by deep and relatively fast flowing water, and have major damage potential.

**Flood Storage Area** Those parts of the floodplain that are important for the temporary storage of flood waters. The loss of storage areas may increase the severity of flood impacts by reducing natural flood attenuation.

**Flood Fringe Area** The remaining land in the Flood Planning Area after the Floodway area and Flood Storage area have been defined.

**Flood Planning Level** The combination of the flood level from the defined flood event and freeboard selected for flood risk management purposes. Different Flood Planning Level may apply to difference types of the development.

**Reliable access** during a flood means the ability for people to safely evacuate an area subject to imminent flooding within effective warning time, having regard to the depth and velocity of flood waters, the suitability of the evacuation route, and without a need to travel through areas where water depths increase.

**Qualified Civil Engineer** is a civil engineer who is included in the National Professional Engineers Register, administered by the Engineers Australia.

## 9.6 Waste Minimisation and Management

All controls are outlined within Bayside Technical Specification Waste Management. All development within the Bayside LGA must comply with the drainage requirements of this Technical Specification.

## 9.7 Traffic, Parking and Access

All controls are outlined within Bayside Technical Specification Stormwater Management. All development within the Bayside LGA must comply with the drainage requirements of this Technical Specification.